

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index #
Date of filing:

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DOMINICK CARAVELLA,

Plaintiff designates Richmond
County as the place of trial

Plaintiff,

Basis of the venue is plaintiff's residence

-against-

SUMMONS

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
VINCENT GAMBINO – Shield No. 8679 and JOHN
DOES – Police Officers as yet unidentified.

Plaintiff resides at
22 Jacques Avenue
Staten Island, NY 1006

Defendants.

County of Richmond

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

THE NEW YORK CITY POLICE
DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER VINCENT GAMBINO
Shield Number 8679
122nd Precinct
2320 Hylan Boulevard
Staten Island, New York 10306

Dated: Brooklyn, New York
February 1, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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DOMINICK CARAVELLA,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
VINCENT GAMBINO – Shield No. 8679 and JOHN
DOES – Police Officers as yet unidentified.

Defendants.

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Plaintiff, DOMINICK CARAVELLA, by his attorneys, RUBENSTEIN & RYNECKI,
ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to
this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF DOMINICK CARAVELLA**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident
of the County of Richmond, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on July 3, 2017, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries

and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on August 29, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing was held.

6. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DOMINICK CARAVELLA, was lawfully present at or near the premises known as 257 New Dorp Lane, County of Richmond, City and State of New York.

8. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DOMINICK CARAVELLA, was assaulted and battered by POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

9. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, DOMINICK CARAVELLA, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, DOMINICK CARAVELLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING AND
RETENTION ON BEHALF OF DOMINICK CARAVELLA**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER VINCENT GAMBINO

and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, DOMINICK CARAVELLA.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendants, POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, DOMINICK CARAVELLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF DOMINICK CARAVELLA**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, DOMINICK CARAVELLA.

20. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, DOMINICK CARAVELLA, sustained serious permanent personal injuries along with

humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, DOMINICK CARAVELLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF DOMINICK CARAVELLA**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on June 1, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, DOMINICK CARAVELLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF DOMINICK CARAVELLA**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff DOMINICK CARAVELLA, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

29. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, DOMINICK CARAVELLA of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

30. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

31. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

32. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

33. That the defendants' actions were not privileged or immune.

34. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

35. By the reason of the foregoing, the plaintiff, DOMINICK CARAVELLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF DOMINICK CARAVELLA**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants POLICE OFFICER VINCENT GAMBINO and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

39. By the reason of the foregoing, the plaintiff, DOMINICK CARAVELLA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, DOMINICK CARAVELLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, DOMINICK CARAVELLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, DOMINICK CARAVELLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, DOMINICK CARAVELLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, DOMINICK CARAVELLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, DOMINICK CARAVELLA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
February 1, 2018

Yours, etc.,



SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
DOMINICK CARAVELLA
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a Member at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
February 1, 2018



SCOTT RYNECKI